

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARIANO VELAZQUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, and POLICE OFFICER
SEAN BROWN, SHIELD NO. 41

Defendants.
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SUMMONS

Index No.:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is locus
of occurrence: County of New
York.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
November 15, 2019

Yours, etc.

THE BAGLEY FIRM, P.C.

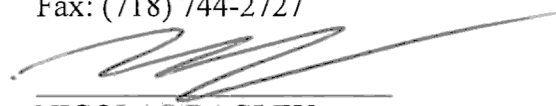
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By: 

NICOLAS BAGLEY

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Defendants' Addresses:

The City of New York
100 Church Street
New York, NY 10007

Police Officer Sean Brown,
Shield No. 41
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARIANO VELAZQUEZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK and POLICE OFFICER
SEAN BROWN, SHIELD NO. 41,

Defendants.
-----X

Plaintiff, MARIANO VELAZQUEZ, by his attorneys THE BAGLEY FIRM, P.C. as for
his Verified Complaint, alleges the following, upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of New
York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all police officers thereof.

3. At all times hereinafter mentioned, on March 19, 2018, Defendant POLICE
OFFICER SEAN BROWN, SHIELD NO. 41 ("BROWN") was employed by Defendant THE
CITY OF NEW YORK, as a police officer.

4. At all times hereinafter mention, Defendant BROWN, was acting within the scope
of his employment as a police officer with THE CITY OF NEW YORK.

5. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the defendant.

6. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by The New York City Police Department.

7. At all times hereinafter mentioned Defendants, THE CITY OF NEW YORK, employed Defendant BROWN.

8. At all relevant times, the individual defendant was acting pursuant to their authority as New York City Police Department employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendant were taken in the course of their duties and were incidental to their otherwise lawful function as an agent, servant and employee of the New York City Police Department.

9. The plaintiff, MARIANO VELAZQUEZ ("VELAZQUEZ") was, on March 19, 2018, and at all relevant times, a resident of the State New York, residing at 691 FDR Drive, New York, NY 10009.

CONDITIONS PRECEDENT

10. On or about November 25, 2018, and within ninety (90) days of the dismissal of the underlying action complained of hereinafter, Plaintiff VELAZQUEZ duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

11. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the dismissal of the event upon which the claims are based.

12. The Plaintiff has complied with the request of the municipal Defendants for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

JURISDICTION AND VENUE

13. The Plaintiff brings this action in the Supreme Court, State of New York, County of New York, because the plaintiff has been injured for a sum that exceeds the jurisdiction of all lower courts.

14. The Plaintiff properly designates New York County as the place of trial. The basis of the venue is the locus of the occurrence.

STATEMENT OF FACTS

15. On or about March 19, 2018, at approximately 5:40 p.m., plaintiff was a lawful pedestrian and was at or near 484 East Houston Street, where he was lawfully entitled to enter.

16. At the above specified time and place, without justification or provocation and without a warrant, defendant BROWN assaulted, accosted, battered, arrested, confined, unduly

restrained, falsely arrested, falsely imprisoned and wrongfully prosecuted plaintiff, VELAZQUEZ.

17. Members of the New York City Police Department maliciously prosecuted the plaintiff, VELAZQUEZ.

18. Plaintiff VELAZQUEZ was held at Police Service Area 4, before being transferred and held at Central Booking.

19. Plaintiff VELAZQUEZ was released on or about March 21, 2018.

20. Plaintiff VELAZQUEZ was forced to attend court approximately once per month following his unlawful arrest.

21. On August 31, 2018, all charges against Plaintiff VELAZQUEZ were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiff repeats, realleges and reiterates the allegations in paragraphs “1” through “21,” inclusive, as though each were set forth at length herein.

23. On or about March 19, 2018, and thereafter, in the County, City and State of New York, the defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered plaintiff, VELAZQUEZ, without any right or grounds thereof.

24. Defendant BROWN injured and maimed plaintiff VELAZQUEZ such that he was unable to move freely or otherwise leave the scene without apprising him as to why he was being placed under arrest.

25. Plaintiff was detained, arrested, imprisoned, assaulted and battered by the defendants, their agents, servants and/or employees without probable cause and/or justification.

26. Defendants, through their agents, servants and/or employees, acted in bad faith in committing the aforementioned arrest, detentions, imprisonment, assault and battery of plaintiff, VELAZQUEZ.

27. Defendants, their agents, servants and/or employees, intended to confine Plaintiff, VELAZQUEZ, in that Plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not privileged.

28. At the time of his unlawful arrest, detention and imprisonment, plaintiff, VELAZQUEZ, had not committed or attempted to commit any illegal act or crime.

29. At the time of plaintiff VELAZQUEZ's unlawful arrest, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest and detention were false and without probable cause.

30. That said false arrest and false imprisonment caused plaintiff, VELAZQUEZ, to suffer emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation.

31. Defendants placed plaintiff VELAZQUEZ under arrest, and falsely charged him with criminal sale of a controlled substance and criminal possession of a controlled substance. Defendants further acted maliciously by falsely testifying against the plaintiff at the time of indictment.

32. Plaintiff VELAZQUEZ was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive plaintiff of his rights guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

33. It is alleged Defendants THE CITY OF NEW YORK, BROWN, their agents, servants and employees, failed to investigate the facts, and therefore maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated plaintiff, VELAZQUEZ, in violation of his constitutional rights.

34. Upon information and belief, plaintiff VELAZQUEZ was released from custody and all criminal charges were dismissed.

35. As a result of the above defendants' actions, plaintiff VELAZQUEZ, suffered and continues to suffer severe mental anguish, humiliation, shame, emotional distress and change of reputation, some or all of which may be permanent.

36. Plaintiff, VELAZQUEZ, suffered – and continues to suffer – greatly and was and is physically and emotionally traumatized by this excessive detention and imprisonment.

37. The false criminal arrest and wrongful imprisonment of plaintiff, VELAZQUEZ, because of defendants' knowledge of lack of any legitimate cause or justification, were intentional, malicious, reckless, and in bad faith.

38. As a direct and proximate result of defendants' actions, plaintiff, VELAZQUEZ, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

39. As a result of the foregoing, plaintiff VELAZQUEZ, demands judgment against Defendants, THE CITY OF NEW YORK and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

40. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "39," inclusive, as though each were set forth fully at length herein.

41. On March 19, 2018, plaintiff was a victim of assault when he was assaulted and battered by police officers employed by or acting at the behest of defendant, THE CITY OF NEW YORK.

42. As a result of the above-mentioned unprovoked assault and battery, the plaintiff, VELAZQUEZ, was injured, intentionally and externally, became sick, sore, lame, and disabled, and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to be cured of said injuries.

43. As a result of the foregoing, plaintiff VELAZQUEZ, demands judgment against Defendants, THE CITY OF NEW YORK and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

44. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "43," inclusive, as though each were set forth fully at length herein.

45. The actions of defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, wrongful imprisonment, assault and battery, all in violation of plaintiff, VELAZQUEZ's civil rights.

46. Defendant deprived plaintiff, VELAZQUEZ, of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

47. Defendants violated the civil and constitutional rights of plaintiff, VELAZQUEZ, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

48. Defendants actions were undertaken under color of law and would not have existed but for said defendants using their official power.

49. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

50. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of plaintiff, VELAZQUEZ, and others similarly situated.

51. As a result of the foregoing, plaintiff, VELAZQUEZ, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

52. As a result of the foregoing, plaintiff VELAZQUEZ, demands judgment against Defendants, THE CITY OF NEW YORK and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

53. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “52,” inclusive, as though each were set forth fully at length herein.

54. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendant BROWN, with knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and therefore, were unfit to be police officers.

55. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendant BROWN, with knowledge that said police officers lacked the deportment to be employed by the aforementioned defendant, and were, therefore, unfit to be police officers.

56. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendant BROWN, with knowledge that said police officers lacked the experience to be employed by the aforementioned defendant, and therefore, were unfit to be police officers.

57. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including defendant BROWN, with knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

58. As a result of the foregoing, Plaintiff VELAZQUEZ, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

59. As a result of the foregoing, Plaintiff VELAZQUEZ, demands judgment against defendants, THE CITY OF NEW YORK, and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

60. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “59,” inclusive, as though each were set forth at length herein.

61. On March 19, 2018, defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against plaintiff, VELAZQUEZ, by filing an accusatory instrument, without probable cause and in bad faith.

62. Plaintiff had not committed any illegal acts.

63. Plaintiff had not given Defendants, their agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

64. Defendants knew or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

65. As a result of the foregoing malicious prosecution, Plaintiff VELAZQUEZ, suffered and continues to suffer, substantial and permanent damages.

66. Said malicious prosecution caused Plaintiff VELAZQUEZ to sustain severe emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

67. As a result of the foregoing, Plaintiff VELAZQUEZ, demands judgment against defendants, THE CITY OF NEW YORK, and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

68. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "67," inclusive, as though each were set forth fully at length herein.

69. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of plaintiff, VELAZQUEZ; the assault and battery committed by defendants against plaintiff, VELAZQUEZ; the violation of plaintiffs civil and constitutional rights; the malicious prosecution of plaintiff, VELAZQUEZ; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the defendants, their agents, servants and/or employees, without any negligence on the part of the plaintiff, VELAZQUEZ.

70. As a result of the foregoing, Plaintiff VELAZQUEZ, demands judgment against defendants, THE CITY OF NEW YORK, and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION

71. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs “1” through “70,” inclusive, as though each were set forth fully at length herein.

72. Defendants’ conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

73. Defendants acted with the desire to cause plaintiff, VELAZQUEZ, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

74. Defendants acted with utter and reckless disregard of the consequences of their actions.

75. As a result of the foregoing, plaintiff, VELAZQUEZ, has sustained severe and debilitating physical, emotional and psychological distress, anguish, anxiety, fear, humiliation, and soreness.

76. As a result of the foregoing, Plaintiff VELAZQUEZ, demands judgment against defendants, THE CITY OF NEW YORK, and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR AN EIGHTH CAUSE OF ACTION

77. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "76," inclusive, as though each were set forth fully herein.

78. Upon information and belief, defendant, THE CITY OF NEW YORK, through other police officers who are unknown at this time, by their conduct and under color of state law, it is believed that these officers had opportunities to intercede on behalf of plaintiff VELAZQUEZ to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

79. As a direct and proximate result, Plaintiff suffered injuries and damages described above.

80. As a result of the foregoing, Plaintiff VELAZQUEZ, demands judgment against defendants, THE CITY OF NEW YORK, and BROWN in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

81. That by reason of the foregoing, plaintiff, VELAZQUEZ, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries; his civil rights were violated. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience, and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

82. Plaintiff VELAZQUEZ suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, was falsely imprisoned, loss of reputation in the community, loss of self-esteem, fear and anxiety as a result of this incident.

83. Plaintiff was deprived of his freedom.

84. As a result of the aforementioned, Defendants violated the rights of Plaintiff, VELAZQUEZ, secured to him under the 8th Amendment and 14th Amendment of the Constitution of the United States of America, and under 42 U.S.C. §1983.

85. Plaintiff, VELAZQUEZ, was caused to be injured, and to undergo pain and suffering as a result of the aforementioned willful, wanton and deliberate indifference on the part of defendants.

86. The above constitutional violations are all actionable under and pursuant to 42 U.S.C. §§1981, 1983, 1985, 1986 and under New York State Law.

87. As a result of the aforesaid, Plaintiff, VELAZQUEZ, was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, MARIANO VELAZQUEZ, respectfully demands judgment against defendants, THE CITY OF NEW YORK and POLICE OFFICER SEAN BROWN, SHIELD NO. 41, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of

reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: Bronx, New York
November 15, 2019

Yours, etc.

THE BAGLEY FIRM, P.C.

Attorneys for Plaintiff

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Bronx, NY 10455

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By:



NICOLAS BAGLEY

nbagley@bagleyfirm.com

ATTORNEY'S VERIFICATION BY AFFIRMATION

NICOLAS BAGLEY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of THE BAGLEY FIRM, P.C., attorneys of record for plaintiff. I have read the annexed

SUMMONS & VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the plaintiff is because plaintiff resides outside of the county wherein your affirmant maintains offices.

Dated: Bronx, New York
November 15, 2019

By:



NICOLAS BAGLEY
nbagley@bagleyfirm.com